



Article: 6

Warrant Article Title:

REMOVAL OF A PUBLIC SHADE TREE

Warrant Article Text:

REMOVAL OF A PUBLIC SHADE TREE

Requested By:

Paul Pandolfo and ten registered voters Select Board 2026 Article Hearings - right click to view in new tab

Report Excerpt:

Vote and comment to Town Meeting - No Action (5-0)

The Board voted unanimously that no action be taken on this article.

An appeal seeking approval for the removal of a public shade tree is a matter solely within the Board's jurisdiction under state law (G.L. c. 87, § 14). For the tree that is the subject of this warrant article, the Board held a tree hearing on December 8, 2025. During the hearing, the Board learned that in approving the proponent's request in July, 2025 for a street occupancy and trench permit for the expansion of his driveway, the Town inserted a condition prohibiting any damage to the public shade tree at issue here or its root system. The proponent agreed to this condition through his acceptance of the trench permit. Shortly after completing the driveway expansion, however, the proponent requested permission to remove the tree. Based on the foregoing, as well as after hearing from several residents who spoke against the tree's removal, the Board denied the proponent's appeal.

Finally, as to that portion of the proponent's request that seeks the Select Board to reconsider its decision, Chapter 87 does not provide for reconsideration of a previously rendered decision.

Vote Language:

That no action be taken on Article 6.

[Select Board Report](#)